

State of Alabama Unified Judicial System	AFFIDAVIT OF SUBSTANTIAL HARDSHIP AND ORDER (Request for Court-Appointed Attorney and/or Waiver of Fees)	Court Case Number
Form C-10-CRIMINAL Page 1 of 3 Rev. 5/2024		
IN THE _____ COURT OF _____, ALABAMA (Circuit, District, or Municipal) (Name of County or Municipality)		
STATE OF ALABAMA MUNICIPALITY OF _____ v. _____, Defendant		
I, because of financial hardship, am unable to hire an attorney and request that the court appoint one for me. I, because of financial hardship, am unable to pay for ignition interlock device fees in this case and request that these fees be waived. I, because of financial hardship, am unable to pay the expungement petition administrative filing fee and request that these fees be waived.		
AFFIDAVIT		
1. IDENTIFICATION		
Full Name _____ Date of Birth _____ Spouse's Full Name (if married) _____ Complete Home Address _____		
Total Number of People I am Supporting Financially in Household Including Myself _____ Telephone Number (Cell) _____ (Home) _____ (Other) _____ State & Last 4 Digits of Driver License's Number _____ Last 4 Digits of Social Security Number _____ Employer's Name & Address _____ Employer's Telephone Number _____		
2. ASSISTANCE BENEFITS		
Some of the residents in my household or I receive benefits from any of the following sources <i>(check those which apply)</i>		
Temporary Assistance for Needy Families (TANF) Food Stamps Medicaid Social Security Income (SSI) Disability Other: _____ The monthly value of these benefits combined is \$ _____.		
3. INCOME/EXPENSE STATEMENT		
Monthly Gross Income:		
My monthly gross income is \$ _____ My spouse's monthly gross income (unless a marital offense) is \$ _____ My other monthly earnings (commissions, bonuses, interest income, etc.) are \$ _____ The combined monthly income received by other members of my household is \$ _____ Monthly Unemployment / Worker's Compensation, Social Security, Retirements, etc. \$ _____ Child Support Payment(s)/Alimony Received \$ _____ Other Monthly Income <i>(be specific)</i> : _____ \$ _____ 3a. TOTAL MONTHLY GROSS INCOME \$ _____		

State of Alabama Unified Judicial System	AFFIDAVIT OF SUBSTANTIAL HARDSHIP AND ORDER (Request for Court-Appointed Attorney and/or Waiver of Fees)	Court Case Number 24-CR-001234
Form C-10-CRIMINAL Page 1 of 3 Rev. 5/2024		
IN THE _____ COURT OF _____, ALABAMA (Circuit, District, or Municipal) (Name of County or Municipality)		
☐ STATE OF ALABAMA ☐ MUNICIPALITY OF _____ v. _____, Defendant		
☐ I, because of financial hardship, am unable to hire an attorney and request that the court appoint one for me. ☐ I, because of financial hardship, am unable to pay for ignition interlock device fees in this case and request that these fees be waived. ☐ I, because of financial hardship, am unable to pay the expungement petition administrative filing fee and request that these fees be waived.		
AFFIDAVIT		
1. IDENTIFICATION		
Full Name <u>Jordan Avery Reyes</u> Date of Birth _____ Spouse's Full Name (if married) _____ Complete Home Address <u>118 Maple Street</u>		
Total Number of People I am Supporting Financially in Household Including Myself _____ Telephone Number (Cell) <u>555-0142</u> (Home) _____ (Other) _____ State & Last 4 Digits of Driver License's Number _____ Last 4 Digits of Social Security Number _____ Employer's Name & Address _____ Employer's Telephone Number _____		
2. ASSISTANCE BENEFITS		
Some of the residents in my household or I receive benefits from any of the following sources <i>(check those which apply)</i>		
☐ Temporary Assistance for Needy Families (TANF) ☐ Food Stamps ☐ Medicaid ☐ Social Security Income (SSI) ☐ Disability ☐ Other: _____ The monthly value of these benefits combined is \$ _____.		
3. INCOME/EXPENSE STATEMENT		
Monthly Gross Income:		
My monthly gross income is \$ _____ My spouse's monthly gross income (unless a marital offense) is \$ _____ My other monthly earnings (commissions, bonuses, interest income, etc.) are \$ _____ The combined monthly income received by other members of my household is \$ _____ Monthly Unemployment / Worker's Compensation, Social Security, Retirements, etc. \$ _____ Child Support Payment(s)/Alimony Received \$ _____ Other Monthly Income <i>(be specific)</i> : _____ \$ _____ 3a. TOTAL MONTHLY GROSS INCOME \$ _____		

State of Alabama Unified Judicial System Form C-10-CRIMINAL Page 2 of 3 Rev. 5/2024	AFFIDAVIT OF SUBSTANTIAL HARDSHIP AND ORDER (Request for Court-Appointed Attorney and/or Waiver of Fees)	Court Case Number
The monthly expenses I pay are: Rent/Mortgage \$ _____ Total Utilities: Gas, Electricity, Water, etc. \$ _____ Food \$ _____ Clothing \$ _____ Health Care/Medical Insurance \$ _____ Car Payment(s)/Transportation Expenses \$ _____ Loan Payment(s) \$ _____ Credit Card Payment(s) \$ _____ Educational/Employment Expenses \$ _____ Cell Phone Expenses \$ _____ Other Expenses (<i>be specific</i>): _____ \$ _____ 3b. Subtotal \$ _____ 3c. Child Support Payment(s)/Alimony (Subtotal) \$ _____ 3d. Exceptional Expenses (Subtotal) \$ _____ 3e. TOTAL MONTHLY EXPENSES (Add totals from 3b, 3c., & 3d. monthly only) \$ _____ Total Monthly Gross Income (3a.) minus Total Monthly Expenses (3e.) \$ _____		
4. Assets My assets are as follows: Cash on Hand/Bank (<i>or otherwise available such as stocks, bonds, certificates of deposit</i>) \$ _____ Equity in Real Estate (value of properly less what you owe) \$ _____ Equity in Personal Property, etc. (such as the value of motor vehicles, stereo, TV, electronics, furnishing, jewelry, tools, guns, less what you owe) \$ _____ Other (<i>be specific</i>): _____ \$ _____ Do you own anything else of value? Yes No (land, house, boat, TV, stereo, jewelry) _____ If so, describe: _____ \$ _____ Total Assets \$ _____		
5. Affidavit/Request I swear or affirm that the answers are true and reflect my current financial status. I understand that a false statement or answer to any question in the affidavit may subject me to the penalties of perjury. I authorize the court or its authorized representative to obtain records of information pertaining to my financial status from any source in order to verify information provided by me. I further understand and acknowledge that, if the court appoints an attorney to represent me, the court may require me to pay all or part of the fees and expenses of my court-appointed counsel, in addition to all or part of the costs associated with this case. Sworn to and subscribed before me this _____ day of _____, _____ _____ (Officer Authorized to Administer Oaths/Notary Public) (Notary Public Only: My Commission expires on _____ (Date)). _____ (Affiant's Signature) _____ (Print or Type Name)		

State of Alabama Unified Judicial System Form C-10-CRIMINAL Page 2 of 3 Rev. 5/2024	AFFIDAVIT OF SUBSTANTIAL HARDSHIP AND ORDER (Request for Court-Appointed Attorney and/or Waiver of Fees)	Court Case Number
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4. Assets My assets are as follows: Cash on Hand/Bank (<i>or otherwise available such as stocks, bonds, certificates of deposit</i>) \$ _____ Equity in Real Estate (value of properly less what you owe) \$ _____ Equity in Personal Property, etc. (such as the value of motor vehicles, stereo, TV, electronics, furnishing, jewelry, tools, guns, less what you owe) \$ _____ Other (<i>be specific</i>): _____ \$ _____ Do you own anything else of value? ☐ Yes ☒ No (land, house, boat, TV, stereo, jewelry) _____ If so, describe: _____ \$ _____ Total Assets \$ _____		
5. Affidavit/Request I swear or affirm that the answers are true and reflect my current financial status. I understand that a false statement or answer to any question in the affidavit may subject me to the penalties of perjury. I authorize the court or its authorized representative to obtain records of information pertaining to my financial status from any source in order to verify information provided by me. I further understand and acknowledge that, if the court appoints an attorney to represent me, the court may require me to pay all or part of the fees and expenses of my court-appointed counsel, in addition to all or part of the costs associated with this case. Sworn to and subscribed before me this _____ day of _____, _____ _____ (Officer Authorized to Administer Oaths/Notary Public) (Notary Public Only: My Commission expires on _____ (Date)). _____ (Affiant's Signature) _____ (Print or Type Name)		

State of Alabama Unified Judicial System Form C-10-CRIMINAL Page 3 of 3 Rev. 5/2024	ORDER ON AFFIDAVIT OF SUBSTANTIAL HARDSHIP (Request for Court-Appointed Attorney and/or Waiver of Fees)	Court Case Number
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IN THE _____ COURT OF _____, ALABAMA
(Circuit, District, or Municipal) (Name of County or Municipality)

STATE OF ALABAMA
MUNICIPALITY OF _____ v. _____, Defendant

The Court has considered the Affiant's testimony, his or her poverty level as measured by the United States poverty guidelines and the potential for substantial hardship that payment by the Affiant would cause. IT IS, THEREFORE, ORDERED AND ADJUDGED BY THE COURT AS FOLLOWS:

☐The request is **DENIED**.

☐The Court finds that the Affiant is **NOT INDIGENT** pursuant to § 15-12-1, et seq., Ala. Code 1975.☐The case or situation is not one for which the request is applicable.☐Other *(please specify)*: _____.

☐The Affiant is **INDIGENT**. Further, affiant has the following income level based on the United States poverty guidelines: at or below 125%; or greater than 125% but less than 200%. However, the Court finds that not providing indigent defense services would cause the Affiant substantial hardship; or greater than 200%. However, the Affiant is charged with a felony, and the Court finds that not providing indigent defense services would cause the Affiant substantial hardship.

☐The following **fees shall be assessed as follows**:

☐Ignition interlock device fees are waived.☐Expungement fees shall be waived.☐Other *(please specify)*: _____.

☐The request for appointment of counsel is GRANTED, and _____ is hereby appointed as counsel for the Defendant.

☐The Affiant is able to contribute monetarily toward payment of the fees of his or her appointed counsel and/or the fees and costs of this case. Therefore, the Affiant is **ordered to pay \$** _____ to the clerk of court for his or her appointed attorney and \$ _____ toward his or her fees and costs. Said fees and costs shall be due as follows: \$ _____ monthly.

☐Other *(please specify)*: _____.

IT IS FURTHER ORDERED AND ADJUDGED that the court reserves the right and may order reimbursement of attorney's fees and other expenses, fees, and costs.

Done this _____.
(Date)

(Signature of _____, Judge)
(Printed Name)

State of Alabama Unified Judicial System Form C-10-CRIMINAL Page 3 of 3 Rev. 5/2024	ORDER ON AFFIDAVIT OF SUBSTANTIAL HARDSHIP (Request for Court-Appointed Attorney and/or Waiver of Fees)	Court Case Number
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IN THE _____ COURT OF _____, ALABAMA
(Circuit, District, or Municipal) (Name of County or Municipality)

☐ STATE OF ALABAMA
☐ MUNICIPALITY OF _____ v. _____, Defendant

The Court has considered the Affiant's testimony, his or her poverty level as measured by the United States poverty guidelines and the potential for substantial hardship that payment by the Affiant would cause. IT IS, THEREFORE, ORDERED AND ADJUDGED BY THE COURT AS FOLLOWS:

☐The request is **DENIED**.

☐The Court finds that the Affiant is **NOT INDIGENT** pursuant to § 15-12-1, et seq., Ala. Code 1975.☐The case or situation is not one for which the request is applicable.☐Other *(please specify)*: _____.

☐The Affiant is **INDIGENT**. Further, affiant has the following income level based on the United States poverty guidelines: at or below 125%; or greater than 125% but less than 200%. However, the Court finds that not providing indigent defense services would cause the Affiant substantial hardship; or greater than 200%. However, the Affiant is charged with a felony, and the Court finds that not providing indigent defense services would cause the Affiant substantial hardship.

☐The following **fees shall be assessed as follows**:

☐Ignition interlock device fees are waived.☐Expungement fees shall be waived.☐Other *(please specify)*: _____.

☐The request for appointment of counsel is GRANTED, and _____ is hereby appointed as counsel for the Defendant.

☐The Affiant is able to contribute monetarily toward payment of the fees of his or her appointed counsel and/or the fees and costs of this case. Therefore, the Affiant is **ordered to pay \$** _____ to the clerk of court for his or her appointed attorney and \$ _____ toward his or her fees and costs. Said fees and costs shall be due as follows: \$ monthly.

☐Other *(please specify)*: _____.

IT IS FURTHER ORDERED AND ADJUDGED that the court reserves the right and may order reimbursement of attorney's fees and other expenses, fees, and costs.

Done this _____.
(Date)

(Signature of _____, Judge)
(Printed Name)